Racism as a Legitimacy Regime

Macharia Barii

October 2026

Racism is not a separate phenomenon from class relations, caste, or religious hierarchy. It is one more legitimacy regime—a technology for making an unjust allocation appear natural, necessary, and just. This is not a reduction. It does not deny that racism has its own history, its own mechanisms, and its own distinctive cruelties. It says that the structural function of racism is the same as the structural function of every legitimacy regime: to conceal the violence of a first allocation, to justify the extraction that follows, and to make the population accept the order. The framework makes this visible in a way that the standard discourse about racism does not.

The Structural Parallel

Consider the four legitimacy regimes the framework has already described.

Ma'at justified the Egyptian order by claiming that the pharaoh was the guarantor of cosmic order, and that the social hierarchy was a reflection of the cosmic hierarchy. The peasant was born to work the land; the priest was born to serve the gods; the pharaoh was born to rule. The order was natural because it reflected the cosmos.

The Mandate of Heaven justified the Chinese order by claiming that the emperor was the Son of Heaven, and that the social order was a reflection of the celestial order. The peasant was born to work the land; the scholar was born to serve the state; the emperor was born to rule. The order was natural because it reflected the heavens.

The res publica justified the Roman order by claiming that the Senate was the successor of the founders, and that the social order was a reflection of the civic order. The slave was born to serve; the citizen was born to rule; the emperor was born to command. The order was natural because it reflected the res publica.

The polis ideology justified the Greek order by claiming that the demos was the community of citizens, and that the social order was a reflection of the civic order. The slave was born to serve; the woman was born to obey; the citizen was born to rule. The order was natural because it reflected the polis.

Now consider racism. Racism justifies the order by claiming that the racial hierarchy is a reflection of the natural hierarchy, and that the social order is a reflection of the racial order. The slave is born to serve; the colonized is born to obey; the master is born to rule. The order is natural because it reflects the races.

The structural parallel is exact. Racism is not a different kind of thing from Ma'at or the Mandate or the res publica. It is the same kind of thing: a legitimacy regime that conceals the violence of the first allocation, justifies the extraction that follows, and makes the population

accept the order. The content varies. Ma'at justified the order by reference to the cosmos. The Mandate justified it by reference to heaven. The res publica justified it by reference to the founders. Racism justifies it by reference to nature. The content is different; the function is the same.

The Function of Racism

Racism performs the same three functions as every legitimacy regime.

First, it conceals the foundation. Every order is founded on a first allocation established by violence. Racism conceals the violence by attributing the order to nature. The colonized was not conquered; he was naturally inferior. The enslaved was not captured; he was naturally servile. The indigenous was not dispossessed; he was naturally incapable of using the land. The violence disappears into nature, and the first allocation appears to be a reflection of the natural order rather than a product of conquest.

Second, it justifies the extraction. Every order extracts from the population for the benefit of the coalition. Racism justifies the extraction by attributing it to nature. The colonized is exploited because he is naturally suited to labor. The enslaved is exploited because he is naturally suited to servitude. The indigenous is dispossessed because he is naturally incapable of civilization. The extraction is not violence; it is the natural order.

Third, it enforces compliance. Every order requires the population to accept the allocation. Racism enforces compliance by attributing resistance to nature. The colonized who resists is naturally savage. The enslaved who rebels is naturally violent. The indigenous who refuses is naturally backward. Resistance is not justified grievance; it is a violation of the natural order.

The three functions are the same as the three functions of Ma'at. Ma'at concealed the conquest, justified the extraction, and enforced the compliance. Racism does the same, with a different content and a different vocabulary.

The Particular Cruelty of Racism

The framework's claim is not that racism is just another legitimacy regime in the sense of being no worse than the others. It is that racism is structurally the same kind of thing, and that its distinctive cruelty comes from a feature that the other legitimacy regimes do not have.

The feature is the embodiment of the allocation. Ma'at justified the order by reference to the cosmos; the cosmos is distant, abstract, and revisable. The Mandate justified the order by reference to heaven; heaven is distant, abstract, and revisable. The res publica justified the order by reference to the founders; the founders are distant, abstract, and revisable. Racism justifies the order by reference to the body. The body is not distant, not abstract, and not revisable. The colonized is inferior because of his body. The enslaved is servile because of his body. The indigenous is backward because of his body. The body cannot be changed, cannot be revised, and cannot be transcended. The allocation is inscribed on the flesh.

This is what makes racism distinctively cruel. The other legitimacy regimes can be revised; the cosmos can be reinterpreted, the Mandate can be renewed, the founders can be reimagined. Racism cannot be revised in the same way, because the body is the justification, and the body is what it is.

This is also what makes racism distinctively effective as a legitimacy regime. The other legitimacy regimes require belief; the cosmos must be believed, the Mandate must be accepted, the founders must be revered. Racism requires only perception; the body is seen, and the perception is the justification. The order appears natural because the body appears different, and the difference is the justification.

This is why racism has been so durable. It does not require a cosmology, a genealogy, or a morality. It requires only the visible body, and the visible body is always present.

Racism and Class

The framework also clarifies the relationship between racism and class. Class is a relation: the relation between those who control the means of production and those who do not. The relation is defined by the allocation of resources, not by the identity of the actors. A worker can become a capitalist; a capitalist can become a worker. The class relation is real, but it is not fixed.

Racism is not a relation in the same sense. It is a legitimacy regime that justifies a relation. The relation may be class (the colonial extraction of labor), or it may be something else (the dispossession of land, the denial of citizenship, the exclusion from the coalition). Racism does not create the relation; it justifies the relation. The relation is real, but the justification is the racism.

This is why racism and class are not the same thing, and why the framework does not reduce one to the other. Class is a relation; racism is a legitimacy regime. The relation can exist without the racism (a class relation among people of the same race); the racism can exist without the relation (a racial hierarchy without economic extraction). They are distinct, and they can be combined.

The combination is what we call racial capitalism. The class relation is the extraction; the racism is the justification. The extraction would exist without the racism, but the racism makes the extraction appear natural, necessary, and just. The racism is not the extraction; it is the concealment of the extraction.

The framework says: to understand racial capitalism, look at the relation and the legitimacy regime separately. The relation is the ledger; the legitimacy regime is the concealment. The two are distinct, and the two must be analyzed separately.

Racism and Religion

The framework also clarifies the relationship between racism and religion. Religion can be a legitimacy regime (the divine right of kings, the Mandate of Heaven, the cosmic order of Ma'at). Or it can be a relation (the relation between the clergy and the laity, the relation between the faithful and the heretic). Or it can be both.

When religion is a legitimacy regime, it functions the same way as racism. It conceals the violence of the first allocation, justifies the extraction, and enforces the compliance. The crusades, the inquisition, the wars of religion—each was a legitimacy regime in action.

When religion is a relation, it is a ledger like any other. The clergy extracts from the laity; the laity complies because the clergy controls the sacred. The extraction is real, but the justification is the religion.

Racism and religion are not the same thing, but they can be combined. The colonial mission was justified by both: the colonized was inferior because of his race and because of his religion. The two legitimacy regimes reinforced each other, and the combination was more effective than either alone.

The framework says: to understand the colonial order, look at the relation and the legitimacy regimes separately. The relation is the extraction; the legitimacy regimes are the concealment. The racism and the religion are distinct, and the two must be analyzed separately.

The Implication

The implication of this analysis is profound, and it is worth stating plainly. Racism is not a moral failure of individuals. It is a structural feature of the legitimacy regime of an unjust order.

This does not mean that individuals are not responsible for their racism. They are. But it means that the responsibility is not the whole story. The racism is not just a set of beliefs that individuals hold; it is a technology that the order uses to conceal its foundation and justify its extraction. The individuals are the carriers of the technology, but the technology is the structure.

This is why racism cannot be abolished by changing individual beliefs. The beliefs can be changed, but the structure remains. The structure is the first allocation and the coalition that benefits from it. As long as the first allocation is unjust, the legitimacy regime will find a way to justify it. If racism is abolished, another legitimacy regime will take its place—caste, religion, class, nation, merit, or some other technology of concealment.

This is not a counsel of despair. It is a counsel of realism. Racism can be reduced, but it cannot be abolished without abolishing the first allocation that it conceals. The two are linked, and the link is structural.

The framework's contribution is to make the link visible. It shows that racism is not a separate problem from class, caste, or religion. It is the same kind of problem: a legitimacy regime that conceals the violence of the first allocation. And it shows that the solution is not just to change beliefs but to change the allocation—to broaden the coalition, to redistribute the resources, to earn the legitimacy, and to protect the four freedoms.

The question is always the same: whose ledger is this, and for whom? For the colonial order, the answer is: the colonizer's, and at the colonized's expense. Racism was the technology that made the answer appear natural. The technology can be exposed, and the answer can be contested. But the technology will not disappear until the answer changes.

The Deeper Implication

The deeper implication is that every legitimacy regime is structurally racist in the sense that it attributes the allocation to a feature of the people rather than to the violence that established it.

Ma'at attributed the allocation to the cosmic order, and the cosmic order was inscribed on the bodies of the Egyptians—the pharaoh was divine, the peasant was base, the foreigner was chaotic. The Mandate attributed the allocation to the celestial order, and the celestial order was inscribed on the bodies of the Chinese—the emperor was the Son of Heaven, the scholar was refined, the barbarian was uncivilized. The res publica attributed the allocation to the founders,

and the founders were inscribed on the bodies of the Romans—the citizen was free, the slave was servile, the barbarian was savage.

Every legitimacy regime attributes the allocation to a feature of the people, and the feature is inscribed on the body. The feature may be cosmic (Ma'at), celestial (the Mandate), civic (res publica), or racial (racism). But the structural function is the same: to make the allocation appear to be a reflection of the people rather than a product of the violence.

This is why the framework says that racism is not a separate phenomenon. It is one form of the general technology of legitimacy, and the general technology is the concealment of the first allocation. The content varies; the function is the same. The question is not whether a legitimacy regime is racist in the narrow sense. It is whether the regime attributes the allocation to a feature of the people rather than to the violence that established it. If it does, it is doing the work of racism, whatever its content.

The Hope

The hope is not that legitimacy regimes can be abolished. They cannot. Every order requires a justification, and every justification attributes the allocation to something other than the violence.

The hope is that the justification can be earned rather than manufactured—that the order can be made less unjust, and that the legitimacy can be based on the actual reduction of the gap rather than on the concealment of the foundation.

A justice regime is effective if and only if it reduces the injustice gap faster than the disequilibrium forces increase it. An earned legitimacy is a legitimacy that is based on the actual reduction of the gap. A manufactured legitimacy is a legitimacy that is based on the concealment of the gap.

The hope is that the legitimacy regimes of the future can be earned rather than manufactured. This requires broadening the coalition, developing institutional adjustment, protecting the four freedoms, and reducing the first allocation's injustice. None of these is easy, and none is permanent. But they are possible, and they are the levers by which the con can be reduced.

The question is always the same: whose ledger is this, and for whom? For the colonial order, the answer is: the colonizer's, and at the colonized's expense. Racism was the technology that made the answer appear natural. The technology can be exposed, and the answer can be contested. But the technology will not disappear until the answer changes.

The hope is that the answer can change. The hope is that the ledger can be rebalanced. The hope is that the first allocation can be partially renegotiated. The hope is that the coalition can be broadened. The hope is that the legitimacy can be earned. The hope is not a promise. It is a possibility. And the possibility is the work of those who ask the question.

A Closing Thought

Racism is not a moral failure of individuals. It is a structural feature of the legitimacy regime of an unjust order. It is the same kind of thing as Ma'at, the Mandate, and the res publica. It is a technology for concealing the violence of the first allocation and making the order appear natural, necessary, and just.

The distinctive cruelty of racism is that it inscribes the allocation on the body, which cannot be revised. The distinctive effectiveness of racism is that it requires only perception, not belief. The distinctive durability of racism is that the body is always present.

But the structure is the same. And the solution is the same. The first allocation must be renegotiated, the coalition must be broadened, the legitimacy must be earned, and the four freedoms must be protected. None of these is easy, and none is permanent. But they are possible, and they are the work of civilization.

The question is always the same: whose ledger is this, and for whom? For the colonial order, the answer is: the colonizer's, and at the colonized's expense. Racism was the technology that made the answer appear natural. The technology can be exposed, and the answer can be contested. But the technology will not disappear until the answer changes. The hope is that the answer can change.

That is the hope. The rest is history—or its absence.